

Opinion of the Court

BOCA GRANDE CLUB, INC. *v.* FLORIDA POWER &
LIGHT CO., INC.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE ELEVENTH CIRCUIT

No. 93–180. Argued January 11, 1994—Decided April 20, 1994

Held: The judgment is vacated and the case remanded for further proceedings consistent with *McDermott, Inc. v. AmClyde*, *ante*, p. 202, which adopts the proportionate share rule, under which actions for contribution against settling defendants are neither necessary nor permitted. Pp. 222–223.

990 F. 2d 606, vacated and remanded.

STEVENS, J., delivered the opinion for a unanimous Court.

David F. Pope argued the cause for petitioner. With him on the briefs was *Jack C. Rinard*.

Ronald J. Mann argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief were *Solicitor General Days*, *Assistant Attorney General Hunger*, *Deputy Solicitor General Kneedler*, and *Richard A. Olderman*.

Stuart C. Markman argued the cause for respondent. With him on the briefs were *James E. Felman*, *C. Steven Yerrid*, and *Christopher S. Knopik*.*

JUSTICE STEVENS delivered the opinion of the Court.

We granted certiorari, 509 U. S. 953 (1993), to consider the question whether, in an action against several alleged joint

*Briefs of *amicus curiae* urging reversal were filed for the Maritime Law Association of the United States by *Warren B. Daly, Jr.*, and *George W. Healy III*; and for the National Association of Securities and Commercial Law Attorneys by *William S. Lerach*, *Leonard B. Simon*, and *Kevin P. Roddy*.

Kathryn A. Oberly, *Carl D. Liggio*, *Jon N. Ekdahl*, *Harris J. Amhowitz*, *Howard J. Krongard*, *Edwin D. Scott*, and *Eldon Olson* filed a brief for *Arthur Andersen & Co. et al.* as *amici curiae* urging affirmance.

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tortfeasors under general maritime law, the plaintiff's settlement with one defendant bars a claim for contribution brought by nonsettling defendants against the settling defendant. Because the opinion that we announce today in *McDermott, Inc. v. AmClyde, ante*, p. 202, adopts the proportionate share rule, under which actions for contribution against settling defendants are neither necessary nor permitted, we vacate the judgment of the Court of Appeals and remand the case for further proceedings consistent with that opinion.

It is so ordered.